

26STCV08224 26STCV08224

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Case Number: 26STCV08224 Hearing Date: August 14, 2026 Dept: 408

Defendants Los Angeles

LGBT Center and Roberto Cervantes' Motion for Stay of Proceedings is GRANTED.

I.

BACKGROUND

On March 13, 2026, Plaintiff Mario Gilberto Marroquin

("Plaintiff") filed a complaint against Defendants Los Angeles LGBT Center

("Center") and Roberto Cervantes ("Cervantes") alleging causes of action for:

1.

Sexual Assault;

2.

Sexual Battery;

3.

Negligent Hiring;

4.

Negligent Supervision; and

5.

Negligent Retention.

On May 13, 2026, Defendants filed this Motion for

Stray of Proceedings. On June 30, 2026, Plaintiff filed an opposition. On July

13, 2026, Defendants filed a reply.

II.

LEGAL STANDARD

“[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141, citing *People v. Bell* (1984) 159 Cal.App.3d 323, 329.) “[T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.” (*Landis v. North American Co.* (1936) 299 U.S. 248, 254; OTO, L.L.C., *supra*, at 141.)

III.

DISCUSSION

Defendants move the court for an order staying this action. (Motion, at p. 1.) Defendants provide that the Center submitted this matter to the Department of Health and Human Services (“DHHS”) for review and determination of coverage under the Federal Tort Claims Act as an entity receiving federal funds pursuant to the Public Health Service Act. (*Id.*, at pp. 1-2.) Defendants contend that if DHHS determines that Defendants are immune, the United States will be required to remove the instant matter to federal court to substitute itself as the named defendant on behalf of Defendants. (*Ibid.*) Defendants also provide that that a mandatory reporter reported Plaintiff’s allegations to the appropriate authorities, and as such an investigation was started. (*Id.*, at pp. 2-3.) As such, Defendants contend that a stay would allow criminal proceedings and investigation to proceed without implicating Cervante’s Fifth and Fourteenth Amendment rights. (*Ibid.*)

In opposition, Plaintiff argues that a DHHS determination that Defendants are immune is legally impossible as Cervantes’ alleged sexual assault is not within the scope of employment and not subject to the Federal Tort Claims Act. (*Opp.*, at p. 2.) Plaintiff also argues that Defendants failed to demonstrate that any criminal proceeding against Cervantes is actually ongoing to warrant a stay. (*Id.*, at pp. 3-4.)

The court finds that based on the outstanding issues described, a stay of the entire proceeding is in the interest of justice. Although Plaintiff certainly has an interest in proceeding to

trial expeditiously, the court concludes that they will not be substantially prejudiced by a limited stay. The court also finds that granting a stay promotes judicial efficiency. If the case proceeds while criminal proceedings are ongoing, it will likely result in extensive discovery disputes related to Cervantes' invocation of the Fifth and Fourteenth Amendment. Courts have consistently recognized that forcing a party into repeated privilege assertions creates a "spasmodic" and inefficient litigation process, unnecessarily burdening both the parties and the court. (*Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690; *Avant! Corp v. Superior Court* (2000) 79 Cal.App.4th 876, 888.) Moreover, a determination regarding immunity may lead to the case proceeding in a different forum. A stay in this matter would simplify management of this case and conserve judicial resources.

Accordingly, the motion is granted.

IV.

CONCLUSION

Defendants

Los Angeles LGBT Center and Roberto Cervantes' Motion for Stay of Proceedings is GRANTED.